# Harbor Point Mutual Auto Insurance

Bodily Injury Unit

## Claim Notes

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| **Claim number:** | C-1011 |
| **Claimant:** | Erika Miller |
| **Adjuster:** | Alison Sweeney |

2023-10-13 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured states the other vehicle merged into their lane without signaling. Both drivers reported as having sustained minor vehicle damage at the rear quarter and passenger side. Claimant reports concussion symptoms and has been transported for evaluation. Liability under review pending statements and scene photographs.

2023-10-20 - Obtained recorded statements from both drivers and one independent witness. Witness corroborates that the claimant's vehicle moved laterally into the adjacent lane. Dashcam footage from the insured vehicle requested. Preliminary liability assessment leans toward the claimant's vehicle as the primary contributor, subject to footage review.

2023-10-22 - Claimant is now represented by counsel. All further communication to be directed to the attorney of record. Letter of representation received and placed in file. Medical authorization and records request sent to counsel. Bodily injury reserve set at the initial evaluation level pending receipt of treatment records.

2023-10-25 - Dashcam footage received and reviewed. Footage shows the claimant's vehicle drifting toward the lane line for several seconds before contact, consistent with the insured's account. Supervisor notified of the liability position. Reviewing applicable comparative fault rules for the jurisdiction before issuing any position to counsel.

2023-10-27 - Counsel's office acknowledged receipt of the liability position and requested additional time to review the footage. Medical records still outstanding; follow-up sent. Concussion diagnosis documented by treating provider, with a referral for neurological follow-up. Claim remains open. Next reivew scheduled once records and counsel's response are received.

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## Recorded Statement

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|---|---|
| **Claim number:** | C-1011 |
| **Statement of:** | Erika Miller |
| **Taken by:** | Alison Sweeney |
| **Date:** | 2023-10-18 |

Q: Thanks for taking the time to speak with me today. This recorded statement concerns the collision you were involved in wihle changing lanes in League City, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Can you describe where you were and what you were doing right before the impact?

A: I was driving on the main road heading toward the shopping center. I was in the left lane and wanted to move over to the right lane because I needed to make a turn coming up. I checked my mirror and glanced over my shoulder, and I thought the lane was clear.

Q: What happened when you started to move over?

A: The other car was in my blind spot, I guess. It was a sideswipe. I felt a bump on the passenger side of my car, and then both cars kind of drifted. I pulled over onto the shoulder once I got control of the steering.

Q: Did you notice the other vehicle before the contact?

A: No, not really. I didn't see it until it was right next to me.

Q: Were you injured in the collision?

A: Yes. I hit my head on the side window, I think. I've had a headache ever since, and I felt dizzy and foggy for a while afterward. My doctor said it looks like a concussion.

Q: Are you still experiencing those symptoms?

A: Some of them. Light bothers my eyes, and I get tired faster than usual. I'm trying to take it easy and I've been told to avoid screens for long stretches.

Q: Did you receive medical treatment at the scene or afterward?

A: An ambulance took me to the emergency room. I've been seeing my primary care doctor since then for follow-up.

Q: Thank you. Is there anything you would like to add to your statement?

A: I just want to say I didn't mean for this to happen. I was trying to be careful, but I clearly missed that car.

Q: Thank you for your cooperation. This concludes the recorded statement.